

Court No. - 29

Case :- WRIT - C No. - 13397 of 2019

Petitioner :- Ajay Bahadur Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rakesh Chandra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

On the request of learned counsel appearing for the respondents no. 2, 3 and 4, put up on Monday, the 22nd April, 2019, as fresh.

Order Date :- 18.4.2019

M.A.Ansari

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Heard Sri Rakesh Chand Tiwari, learned counsel for the petitioner, learned Standing Counsel and Sri N.K. Tiwari, learned counsel who has accepted notice on behalf of electricity Department.

The dispute in this writ petition is regarding incorrect electricity bill for the months of April 2018 till March 2019.

The submission of learned counsel for the petitioner is that though the monthly bills of the aforesaid months have been corrected but the arrears demanded therein are excessive and not correct.

According to the petitioner, the amount of arrears demanded by the aforesaid bills requires rectification. He submits that the petitioner is ready and willing to make the monthly payment of the dues as per aforesaid bills and that the matter with regard to the arrears demanded therein may be referred to the alternative forum as per paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

Learned Counsel for the electricity has no objection to the above proposal.

Accordingly, we dispose of the writ petition with liberty to the petitioner to raise the dispute with regard to the arrears of electricity dues demanded in the aforesaid bills as per Paragraph 6.5 of the Code and to deposit the monthly amount of electricity dues demanded thereunder and may continue to deposit the monthly amount as per bills raised and to pay the arrears on resolution of the dispute with regard to the arrears.

The petitioner will approach alternative forum under paragraph 6.5 of the Code within a period of two weeks from today.

Any amount which has already been deposited by the petitioner with regard to the aforesaid billing period shall be given due adjustment.

The petition is accordingly disposed of.

Order Date :- 22.4.2019

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